

15 CV 2017-1

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

YOTAM MAROM, MIRIAM ROCEK, and DON
FITZGERALD,

Plaintiffs,

-v-

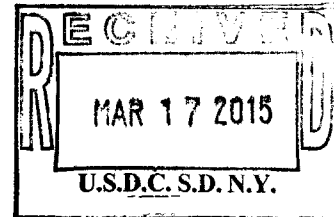
THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT ("NYPD") CHIEF OF
DEPARTMENT JOSEPH ESPOSITO, NYPD
DEPUTY INSPECTOR EDWARD WINSKI,
NYPD LIEUTENANT FRANK VIVIANO,
NYPD SERGEANT FIOR BLANCO, NYPD LEGAL
BUREAU OFFICER OLEG CHARNYAVSKY,
NYPD OFFICER MICHAEL GALGANO,
SHIELD NO. 2671, NYPD OFFICER CYNTHIA
BOYLE, SHIELD 06663, NYPD OFFICER STEVEN
VALENTINE, SHIELD 13585, and NYPD
OFFICERS JOHN and JANE DOE # 1 - 15 (The
names being fictitious, as the true names and shield
numbers are not presently known), in their individual
and official capacities,

Defendants.

COMPLAINT AND DEMAND
FOR JURY TRIAL

Index No.

ECF CASE



Plaintiffs, by their counsel, GIDEON ORION OLIVER, as and for their Complaint
against Defendants, hereby allege as follows:

PRELIMINARY STATEMENT

1. Plaintiffs bring this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. § 1988 for violations of their civil rights, as secured by said statutes and the Constitution of the United States and the Constitution and laws of the State of New York.

2. On March 17, 2012, Plaintiffs participated in a First Amendment Assembly on the six-month anniversary of Occupy Wall Street in Zuccotti Park, also known as Liberty Plaza.

Without lawful authority or justification, and acting pursuant to a policy, practice, and/or custom of unlawfully limiting First Amendment assemblies and other lawful and constitutionally protected activities in Liberty Plaza, Defendants attacked the First Amendment Assembly and Plaintiffs, and arrested Plaintiffs, detained Plaintiffs for an excessive period of time, maliciously abused process against, and otherwise injured Plaintiffs.

JURISDICTION AND VENUE

3. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the First, Fourth, and Fourteenth Amendments to the United States Constitution.

4. This Court has subject matter jurisdiction over federal claims pursuant to 28 U.S.C. §§ 1331, 1343(a)(3-4).

5. This Court has supplemental jurisdiction over Plaintiffs' claims against defendants under the Constitution and laws of the State of New York because they are so related to the within federal claims that they form part of the same case or controversy pursuant to 28 U.S.C. § 1367(a).

6. Pursuant to New York State General Municipal Law § 50-e, Plaintiffs filed timely Notices of Claim with the New York City Comptroller. Plaintiffs' claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is proper pursuant to 28 U.S.C. § 1391(b) in that Plaintiffs' claims arose in the Southern District of New York.

PARTIES

8. At all times relevant to this action, plaintiff YOTAM MAROM was a resident of New York State.

9. At all times relevant to this action, plaintiff MIRIAM ROCEK was a resident of New York State.

10. At all times relevant to this action, plaintiff DON FITZGERALD was a resident of New York State.

11. Defendant THE CITY OF NEW YORK (“NYC” or “the City”) is a municipal entity created and authorized under the laws of the State of New York, with general offices located at City Hall, New York, New York 10007.

12. Defendant City is authorized by law to maintain the New York City Police Department (“NYPD”), which acts as its agent in the area of law enforcement, and defendant NYC is ultimately responsible for the NYPD and assumes the risks incidental to the maintenance of it and its employees.

13. At all times relevant herein, defendant JOSEPH ESPOSITO was the NYPD’s Chief of Department, defendant EDWARD WINSKI was a NYPD Deputy Inspector, and defendant FRANK VIVIANO was a NYPD Lieutenant, defendant FIOR BLANCO was a NYPD SERGEANT, defendant OLEG CHARNYAVSKY was a NYPD LEGAL BUREAU attorney, and these defendants were each and all supervisors and high-level NYPD policymaking officials personally involved in depriving plaintiffs of their rights and/or in developing and/or implementing the unconstitutional policies, practices, customs and/or conduct complained of herein. Defendants ESPOSITO, WINSKI, and VIVIANO, BLANCO, and CHARNYAVSKY were personally involved in designing and implementing the policies and practices complained of herein, and were personally involved in directing, supervising, and/or assisting in plaintiffs’ arrests and/or arrest processing and/or failed to intervene to prevent injuries to plaintiffs.

14. Defendants NYPD OFFICER MICHAEL GALGANO, SHIELD NO. 2671, NYPD OFFICER CYNTHIA BOYLE, SHIELD 06663, and NYPD OFFICER STEVEN VALENTINE, SHIELD 13585 were at all times herein officers, employees, and agents of the NYPD and who were personally involved in depriving plaintiffs of their rights and in implementing the unconstitutional policies, practices, customs and/or conduct complained of herein, as set forth more fully below.

15. Defendant Galgano was personally involved in depriving at least Plaintiff Marom of his rights.

16. Defendant Boyle was personally involved in depriving at least Plaintiff Rocek of her rights.

17. Defendant Valentine was personally involved in depriving at least Plaintiff Fitzgerald of his rights.

18. Defendants Esposito, Winski, Viviano, and Galgano have all given deposition testimony related to the allegations in this Complaint during their depositions in *Alexander Carvalho, et al. v. City of New York, et al.*, 13-cv-1174 (PKC)(MHD)

19. Defendants are each being sued herein in their individual and official capacities.

20. The individually named defendants “JOHN AND JANE DOES NOS. 1 THROUGH 15” are NYPD officers whose real names are not yet known to plaintiffs and who were personally involved in depriving plaintiffs of their rights and in implementing the unconstitutional policies, practices, customs and/or conduct complained of herein, as set forth more fully below.

21. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

22. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by the defendant City.

23. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by the defendant City.

24. Defendants were each and all responsible, in whole and/or in part, for the planning for and/or creation, promulgation, implementation, and/or enforcement of the unconstitutional policies, practices and/or customs complained of herein, and/or condoned, acquiesced in, adopted, and/or approved of the same, through their acts and/or failures to act, as set forth more fully below.

25. At all times relevant herein, as set forth more fully below, defendants' actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.

26. Each individual defendant is sued in her or his individual and official capacities.

STATEMENT OF FACTS

27. At all times relevant herein in 2011 and 2012, plaintiffs were each participants in the Occupy Wall Street movement ("Occupy" or "OWS").

28. On September 17, 2011, OWS began a 24-hour occupation of Zuccotti Park, a privately owned public space in lower Manhattan also known as Liberty Plaza.

29. Zuccotti Park/Liberty Plaza is a Privately Owned Public Space that was created via a Special Permit issued by the New York City Planning Commission ("CPC") in 1986

pursuant to a provision of the New York City Zoning Resolution (“ZR” or “Zoning Resolution”) in effect at that time.

30. Under the Special Permit, Liberty Plaza is defined as a “permanent open park” for the “public benefit.”

31. Under the relevant provisions of the ZR, at least 50% of the sidewalk frontage of such a POPS must be free of obstruction, and circulation paths must connect to each of the street frontages. *See* ZR 37-721; 37-723; 37-726.

32. Any proposed modifications to Liberty Plaza’s design must first go through a City approval process. *See, e.g.,* ZR 37-62, *et seq.*; 37-38; 74-91.

33. The CPC is precluded by statute from authorizing changes to such a POPS’ physical design unless the changes will improve compliance with the applicable public accessibility standards. *See* ZR 37-625.

34. Under the ZR, any prohibition on conduct in such a POPS must be clearly posted in writing. *See* ZR 37-73, *et seq.*

35. By long-standing City practice, any such prohibitions must be reasonable.

36. City law requires that “public plazas shall be accessible to the public at all times, except where the CPC has authorized a nighttime closing.” *See* ZR 37-727.

37. Between September 17, 2011 and November 15, 2011, the Occupy Wall Street movement physically occupied Liberty Plaza.

38. On the early hours of November 15, 2011, the NYPD raided Liberty Plaza and forcefully cleared it, arresting scores of occupiers for offenses including trespassing.

39. As a result of the NYPD’s early morning raid on Liberty Plaza, there were mass arrests and property destruction. For example, the NYPD and/or other City agencies destroyed

The People's Library, a collection of books and other materials belonging to OWS. Plaintiffs incorporate by reference the allegations contained in the Complaint in *Occupy Wall Street, et al. v. The City of New York, et al.*, 12-cv-04129 (GBD).

40. Upon information and belief, no emergency situation existed in Liberty Plaza on November 15, 2011, when the NYPD conducted its early morning raid.

41. Beginning on November 15, 2011, and for significant periods of time thereafter leading up to and including on March 17, 2012, the NYPD erected metal barricades around Liberty Plaza, and members of the public were subject to searches of their personal belongings by security personnel as a condition of entering Liberty Plaza.

42. The NYPD also enacted and enforced arbitrary and shifting criteria determining who could enter the park, at what times they could enter, and what behavior they could engage in within Liberty Plaza.

43. No CPC permission was sought or granted to change the physical layout of Liberty Plaza.

44. No CPC permission was sought or granted to change the rules of conduct within Liberty Plaza.

45. The shifting rules regarding entry and conduct enforced by Defendants to limit First Amendment and other protected activity within Liberty Plaza were not lawfully imposed.

46. Those actions, as well as the actions taken against Plaintiffs complained of herein, violated not only the terms of the Special Permit and New York City Zoning Law, but also the United States Constitution and the constitution and laws of the State of New York.

47. In the period before the 2004 Republican National Convention in New York City beginning in early 2003, Defendant Joseph Esposito was among the high-level NYPD

policymaking officials on the NYPD's Executive Committee who were personally involved in planning for aspects of the NYPD's response to the 2004 RNC.

48. Defendant Esposito was personally involved in planning the NYPD's responses to anticipated mass protests, mass arrests, and mass arrest processing.

49. Defendant Esposito attended meetings at which planning for anticipated mass protests, mass arrests, and mass arrest processing were discussed, and/or sent representatives to such meetings, who reported back to him, including such meetings with then-NYPD Commissioner Raymond Kelly, and other high-level NYPD officials.

50. The NYPD's final RNC mass arrest processing plans included an additional arrest processing procedure, not usually followed in other arrest situations, during which each "arresting officer" would meet with a supervisor from the NYPD's Legal Bureau.

51. Upon information and belief, a primary purpose of adding that additional procedure was to ensure that NYPD officers could articulate properly what they saw leading up to the defendant's arrest and so that people who had not committed offenses could be released during arrest processing.

52. Defendant Esposito was personally involved in the NYPD's decisions to enact its RNC-related mass arrest processing plans.

53. Defendant Esposito was personally involved in the NYPD's decision to enact a "no-summons" policy with respect to RNC-related arrestees.

54. Between August 27, 2004 and September 2, 2004, there were over 1,800 RNC-related arrests.

55. As a result of the City's and the NYPD's crowd and disorder control planning, the NYPD engaged in mass arrests during the 2004 RNC.

56. As a result of the City's and the NYPD's crowd and disorder control planning, the NYPD failed to make individualized determinations of probable cause in connection with many RNC-related arrests.

57. As a result of the City's and the NYPD's mass arrest and mass arrest processing plans with respect to RNC-related arrestees, force was used against many arrestees without any NYPD documentation.

58. As a result of the City's and the NYPD's mass arrest and mass arrest processing plans with respect to RNC-related arrestees, RNC-related arrestees' arrest-to-arraignment time vastly exceeded twenty-four hours, and in many cases doubled non-RNC-related arrestees' arrest-to-arraignment times.

59. As a result of the City's and the NYPD's mass arrest and mass arrest processing plans with respect to RNC-related arrestees, NYPD officers who had not in fact witnessed the conduct leading up to a person's arrest filled out NYPD paperwork and in a significant number of cases swore out criminal court complaints swearing that they had seen conduct they had not in fact seen.

60. As a result of the NYPD's RNC-related conduct, the City of New York, and Defendant Esposito, were defendants in dozens of lawsuits challenging, among other things, the City's disorder control, mass arrest, use of force, and mass arrest processing policies, procedures, customs, and practices.

61. After around a decade of discovery and litigation, during the course of which Defendant Esposito himself gave several days of deposition testimony, the bulk of the RNC cases settled.

62. Beginning in around at least September of 2011, Defendant Esposito became aware of Occupy Wall Street.

63. Beginning in around at least September of 2011, Defendant Winski became aware of Occupy Wall Street.

64. Beginning in around September of 2011, Defendant Esposito was personally involved in planning for and enacting the NYPD's police responses to OWS.

65. Beginning in around September of 2011, Defendant Winski was personally involved in planning for and enacting the NYPD's police responses to OWS.

66. Upon information and belief, Defendant Esposito personally ordered and supervised the mass arrests of around 700 people on the Brooklyn Bridge on October 1, 2011.

67. Upon information and belief, between September 17, 2011 and November 15, 2011, Defendants Esposito and Winski received regular information regarding OWS events and police responses to them.

68. Upon information and belief, between September 17, 2011 and November 15, 2011, Defendants Esposito and Winski were personally involved in planning and supervising NYPD responses to anticipated OWS events, including, but not limited to, such events at which mass arrests were anticipated and occurred.

69. Upon information and belief, between September 17, 2011 and November 15, 2011, Defendant Esposito and/or his subordinate NYPD officers or agents acting under his direction and supervision communicated with representatives of Brookfield Office Properties, Inc. regarding OWS and the occupation of Zuccotti Park, sharing information back-and-forth and planning to evict the occupation from Zuccotti Park.

70. Upon information and belief, Defendant Esposito was personally involved in developing plans to evict the occupation from Zuccotti Park in November of 2011.

71. Upon information and belief, Defendant Esposito supervised the mass eviction of Zuccotti Park on November 15, 2011.

72. Defendant Esposito knew or should have known that the NYPD's plans for policing and mass arrest processing in connection OWS protests would result in unlawful arrests, excessive use of force, excessive detentions, malicious abuse of process, and other unlawful conduct.

73. On March 17, 2012, Defendant Esposito was the highest ranking NYPD officer in the vicinity of Plaintiffs' arrests.

74. On March 17, 2012, Defendant Winski was the second-highest-ranking NYPD officer in the vicinity of Plaintiffs' arrests.

75. On March 17, 2012, Defendant Esposito was the NYPD Incident Commander in the vicinity of Plaintiffs' arrests and was actually responsible for making command and control decisions as well as all supervisory decisions with respect to all fellow officers on the scene.

76. Alternately, on March 17, 2012, Defendant Esposito was the NYPD Incident Commander in the vicinity of Plaintiffs' arrests and was actually responsible for making command and control decisions as well as all supervisory decisions with respect to all fellow officers on the scene.

77. Upon information and belief, according to NYPD policy and procedure, as Incident Commander, either Defendant Esposito or Defendant Winski or both had a responsibility to ensure that any arrest teams assigned to process arrests had definite knowledge

of each arrest and that arresting officers could articulate all the factual elements of the offense for which each arrest was effected.

78. Upon information and belief, at all times relevant herein on March 17, 2012, defendant Blanco was a NYPD supervisor whose responsibility it was, according to NYPD policy and procedure, to ensure the accuracy of defendants Galgano's, Boyle's, and Valentine's arrest processing paperwork, as well as the accuracy of other arrest processing paperwork related to the incident.

79. Upon information and belief, at all times relevant herein on March 17, 2012, defendant Charnyavsky was a NYPD supervisor whose responsibility it was, according to NYPD policy and procedure, to ensure that NYPD officers could articulate properly what they saw leading up to the defendant's arrest and so that people who had not committed offenses could be released during arrest processing.

80. On March 17, 2012, Defendants Esposito, Winski, Viviano, Charnyavsky, and Blanco knew or should have known that the NYPD's crowd control policies and practices with respect to OWS protest activities would result in unlawful mass arrests, uses of force, excessive detentions, and other injuries to Plaintiffs and others.

81. On March 17, 2012, Defendants Esposito, Winski, Viviano, Charnyavsky, Blanco, and other unidentified NYPD supervisors knew or should have known that their crowd control tactics would result in purported dispersal orders that were impossible to comply with, and mass arrests without appropriate individualized determinations of probable cause.

82. Defendants Esposito, Winski, Viviano, Charnyavsky, and/or Blanco suggested, endorsed, ratified, or enacted a policy, practice, or procedure on March 17, 2012 of not issuing

summons for Disorderly Conduct, Trespass, and other summons-eligible offenses in connection with planned OWS-associated protests.

83. Defendants Esposito, Winski, Viviano, Charnyavsky, and/or Blanco suggested, endorsed, ratified, or enacted a policy, practice, or procedure on March 17, 2012 of having assigned arresting officers speak with NYPD Legal Bureau as part of the mass arrest processing procedures.

84. Defendants Esposito, Winski, Viviano, Charnyavsky, and/or Blanco knew or should have known that processing the anticipated mass arrests as DAT's or otherwise at a Mass Arrest Processing Center ("MAPC") would unnecessarily increase their arrest to release time.

85. In Plaintiffs' cases, their arrest to release time was around double that of summons eligible people.

86. Upon information and belief, Defendants Esposito, Winski, Viviano, Charnyavsky, and/or Blanco and other unidentified NYPD supervisors enacted the no-summons policy, and the other mass arrest-related policies and practices complained of herein, in order to shut down Plaintiffs' participation in or proximity to lawful, protected activity.

87. Defendants Esposito, Winski, Viviano, Charnyavsky, and/or Blanco knew or should have known that the NYPD's March 17, 2012 mass arrest processing plans and/or practices would result in assigned arresting officers filling out NYPD and criminal court paperwork containing false allegations.

88. On March 17, 2012, Defendants Galgano, Boyle, and Valentine were all NYPD Officers under the command and supervision of Defendants Esposito,, Winski, Viviano, Blanco, and Charnyavsky.

89. Upon information and belief, Defendants Galgano, Boyle, and Valentine met with defendant Blanco in connection with processing plaintiffs' arrests.

90. Upon information and belief, Defendants Galgano, Boyle, and Valentine met with defendant Charnyavsky in connection with processing plaintiffs' arrests.

91. On March 17, 2012, all other Defendants were under Defendant Esposito in the chain of command.

92. On March 17, 2012, defendants Esposito, Winski, Viviano, Blanco, and Charnyavsky ordered defendants Galgano, Boyle, and Valentine to process numerous arrests made on March 17, 2012 in connection with the incident, including plaintiffs' arrests.

93. At the time they were ordered to process arrestees, defendants Galgano, Boyle, and Valentine had not observed any plaintiff engage in any conduct.

94. Defendant Galgano never saw Mr. Marom in Liberty Plaza.

95. The first time defendant Galgano saw Mr. Marom was in the vicinity of the NYPD's Midtown South Precinct.

96. Upon information and belief, defendant Boyle never saw Ms. Rocek in Liberty Plaza.

97. Upon information and belief, defendant, the first time defendant Boyle saw Ms. Rocek was in the vicinity of the NYPD's Midtown South Precinct.

98. Upon information and belief, Defendant Valentine never saw Mr. Fitzgerald in Liberty Plaza.

99. Upon information and belief, the first time defendant Valentine saw Mr. Fitzgerald was in the vicinity of the NYPD's Midtown South Precinct.

100. Upon information and belief, defendants Charnyavsky and Blanco supervised defendants in filling out their NYPD paperwork.

101. Upon information and belief, defendant Galgano filled out NYPD paperwork stating that he had seen Mr. Marom engage in certain conduct when he had in fact not done so.

102. Upon information and belief, defendant Boyle filled out NYPD paperwork stating that he had seen Ms. Rocek engage in certain conduct when he had in fact not done so.

103. Upon information and belief, defendant Valentine filled out NYPD paperwork stating that he had seen Mr. Fitzgerald engage in certain conduct when he had in fact not done so.

104. As a result of defendants' decisions to arrest plaintiffs, and not to issue summonses to Plaintiffs, Plaintiffs were detained for an excessively long, and unreasonable, period of time.

105. As a result of the Defendants' mass arrest processing policies, procedures, and practices, Defendants Galgano, Boyle, and Valentine provided false and misleading information to DANY, as a result of which Plaintiffs were prosecuted.

106. For example, in an accusatory instrument, defendant Galgano specifically swore he saw Mr. Marom and another person in Zuccotti Park, when he had not.

107. Similarly, in an accusatory instrument, defendant Boyle specifically swore that she saw certain conduct that she did not.

108. Similarly, in an accusatory instrument, defendant Valentine specifically swore that he saw certain conduct that he did not.

109. Based on those false statements, Plaintiffs were prosecuted for criminal offenses.

110. Although the defendants aside from defendants Galgano, Boyle, and Valentine knew or should have known that their acts and omissions on March 17, 2012 would lead to plaintiffs' false arrests and their other injuries, none of them intervened to prevent or remediate the injuries.

111. March 17, 2012 was St. Patrick's Day and the six month anniversary of Occupy Wall Street.

112. On the evening of March 17, 2012, each plaintiff was lawfully present in Liberty Plaza.

113. On the evening of March 17, 2012, defendant NYPD agents raided Liberty Plaza and effected mass arrests.

114. Defendant NYPD agents then caused each Plaintiff to be transported to an NYPD precinct for mass arrest processing.

115. After mass arrest processing at the precinct, each Plaintiff was brought to 100 Centre Street, and eventually appeared before a judge.

116. Each Plaintiff was subsequently prosecuted..

PLAINTIFF YOTAM MAROM

117. On the evening of March 17, 2012, Mr. Marom was lawfully present in Liberty Plaza in connection with the six month anniversary of the Occupy Wall Street movement.

118. Mr. Marom eventually saw a large number of police officers enter the park.

119. Mr. Marom was violently arrested.

120. Mr. Marom was not arrested by defendant Galgano.

121. Mr. Marom was then forcibly escorted to a NYPD-arranged holding area on the street.

122. Mr. Marom was eventually loaded onto a MTA bus.

123. Mr. Marom was eventually transported to the NYPD's Midtown South Precinct.

124. At or near the NYPD's Midtown South Precinct, defendant Galgano saw Mr. Marom for the first time.

125. Mr. Marom's cuffs were tight on his wrists. They remained on for several hours.

126. Mr. Marom was eventually transported to 100 Centre Street.

127. Approximately 40 or more hours after his arrest, at or after around on March 19, 2012, Mr. Marom was arraigned before a New York City Criminal Court Judge.

128. As a result of his arrest, Mr. Marom missed the opportunity to participate on a planned panel on March 18, 2012 at the Left Forum at Pace University.

129. Mr. Marom eventually accepted an ACD to resolve the case.

130. As a result of this incident, Mr. Marom suffered physical, psychological and emotional injuries, mental anguish, suffering, humiliation, embarrassment, and other damages.

PLAINTIFF MIRIAM ROCEK

131. On the evening of March 17, 2012, Ms. Rocek was lawfully present in Liberty Plaza acting as a volunteer street medic in connection with the six month anniversary of the Occupy Wall Street movement.

132. Ms. Rocek eventually saw a large number of police officers enter the park.

133. The first contact Ms. Rocek had with the police was when an unidentified NYPD supervisor pointed at her and stated, "Get her first, she's number one."

134. Within less than a few seconds, two apparently male NYPD officers grabbed Ms. Rocek by her arms, pulled her by her arms, and threw her onto the ground, so that she ended up face-down on the ground.

135. As she was face-down on the ground, Ms. Rocek was not resisting.

136. Nevertheless, an NYPD officer kept repeating, “Stop resisting.”

137. The officer also said, “Just relax.”

138. In response, Ms. Rocek said words to the effect of, “Fuck you, don’t tell me to relax.”

139. The officer then said words to the effect of, “Fine, fuck you then,” and twisted her arm up her back as he placed plastic flexcuffs on her.

140. The officer then yelled at her, “Get up,” although she could not because she was cuffed.

141. She was then dragged by NYPD officers by her hair and pulled up onto her feet.

142. She was then forcibly escorted to a NYPD Prisoner Transport Vehicle, where she was turned over to other NYPD officers.

143. In the course of her arrest, the NYPD officers who grabbed her and threw her to the ground ripped Ms. Rocek’s jacket.

144. Ms. Rocek was eventually transported to the NYPD’s Midtown South Precinct, where she was turned over to other NYPD officers.

145. Upon information and belief, at or near the NYPD’s Midtown South Precinct, defendant Boyle saw Ms. Rocek for the first time.

146. Ms. Rocek’s cuffs were tight on her wrists. They remained on for approximately four hours.

147. No apparently female NYPD officers were personally involved in Ms. Rocek’s arrest.

148. Ms. Rocek was eventually transported to 100 Centre Street.

149. Approximately 24 hours after her arrest, at or after around 12:00AM on March 19, 2012, Ms. Rocek was arraigned before a New York City Criminal Court Judge.

150. After numerous court appearances, in November of 2012, Ms. Rocek eventually accepted an ACD to resolve the case.

151. As a result of ther incident, Ms. Rocek suffered physical, psychological and emotional injuries, mental anguish, suffering, humiliation, embarrassment, and other damages.

PLAINTIFF DON FITZGERALD

152. On the evening of March 17, 2012, Mr. Fitzgerald was lawfully present in Liberty Plaza in connection with the six month anniversary of the Occupy Wall Street movement.

153. Mr. Fitzgerald eventually saw a large number of police officers enter the park.

154. NYPD Officers then grabbed Mr. Fitzgerald violently and threw him face-down on the ground.

155. While he was down on the ground, an unidentified NYPD officer hit him at least ten times in the face while saying, “Stop resisting!”

156. Mr. Fitzgerald was eventually loaded onto an NYPD Prisoner Transport Vehicle (“PTV”).

157. Mr. Fitzgerald was eventually transported to the NYPD’s Midtown South Precinct.

158. Upon information and belief, at the NYPD’s Midtown South Precinct, defendant Valentine saw Mr. Fitzgerald for the first time.

159. Mr. Fitzgerald’s cuffs were tight on his wrists. They remained on for several hours.

160. Mr. Fitzgerald was eventually transported to 100 Centre Street.

161. Approximately 30 or more hours after his arrest, Mr. Fitzgerald was arraigned before a New York City Criminal Court Judge.

162. Mr. Fitzgerald's face was swollen and painful for around a week.

163. As a result of this incident, Mr. Fitzgerald suffered physical, psychological and emotional injuries, mental anguish, suffering, humiliation, embarrassment, and other damages.

FIRST CAUSE OF ACTION

DEPRIVATION OF RIGHTS UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983

164. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

165. Defendants, under color of state law, unlawfully seized and arrested Plaintiffs.

166. Defendants did not have probable cause to arrest Plaintiffs, nor was it objectively reasonable for Defendants to believe that they did have probable cause to arrest Plaintiffs.

167. Defendants' decision to arrest Plaintiffs was based upon Plaintiffs' First Amendment-protected expression, and not upon Plaintiffs' violation of any provision of the law.

168. By their conduct and actions and/or omissions in depriving Plaintiffs of their freedoms to be let alone, to move freely, to assemble, to associate, and to enjoy their property, in seizing them, in falsely arresting them, in assaulting and battering them, in maliciously abusing process against them, in retaliating against them for the exercise of constitutionally protected rights, in inflicting emotional distress upon them, in violating their rights to due process and equal protection, and/or for failing to remedy the aforementioned violations after having witnessed them or having been informed of them by report or appeal, and/or by failing properly to train, supervise, or discipline employees of the Defendant CITY OF NEW YORK under their supervision, Defendants, acting under color of law and without lawful justification, intentionally,

maliciously, and/or with a deliberate indifference to or a reckless disregard for the natural and probable consequences of their acts, deprived plaintiffs of the equal protection of the laws and/or of equal privileges and immunities under the laws, and thereby caused injury and damage in violation of Plaintiffs' constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its First, Fourth, , and Fourteenth Amendments.

169. By the conduct described above, Defendants, under color of state law, subjected Plaintiffs to the foregoing acts and omissions without due process of law and in violation of the First, Fourth, and Fourteenth Amendments to the United States Constitution, through 42 U.S.C. § 1983, thereby depriving Plaintiffs of their rights, privileges and immunities, including, without limitation, deprivation of the following constitutional rights:

- a. Freedom to engage in protected speech, expression and association, without undue constraint or governmental retaliation;
- b. Freedom from unreasonable seizures of their persons, including but not limited to the excessive use of force;
- c. Freedom from arrest without probable cause;
- d. Freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification, and of which Plaintiffs were aware and did not consent;
- e. Freedom from deprivation of liberty and property without due process of law;
- f. The enjoyment of equal protection, privileges and immunities under the laws.

170. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

SECOND CAUSE OF ACTION

SUPERVISORY LIABILITY FOR DEPRIVATION OF RIGHTS UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983

171. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

172. By failing to remedy the wrongs committed by his or her subordinates, in failing to properly train, screen, supervise, or discipline his or her subordinates, and by personally participating in the constitutional injuries set forth above, Defendants City, Esposito, Winski, Viviano, Blanco, and Charnyavsky caused damage and injury in violation of plaintiffs' rights guaranteed under the United States Constitution, including its First, Fourth, and Fourteenth Amendments, through 42 U.S.C. §1983.

173. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

THIRD CAUSE OF ACTION

FAILURE TO INTERVENE

174. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

175. Members of the NYPD have an affirmative duty to assess the constitutionality of interactions between their fellow members of service and civilians and to intervene where they observe another member of the Police Department or other law enforcement agency employing unjustified and excessive force against a civilian or falsely arresting a civilian.

176. Defendants were present for the above-described incident and witnessed other defendants unlawfully arrest the Plaintiffs.

177. Defendants' use of force against Plaintiffs was obviously excessive and unjustified under the circumstances yet Defendants who were not involved in the obviously

unlawful uses of force failed to take any action or make any effort to intervene, halt or protect the Plaintiffs from being subjected to excessive force by other Defendants.

178. Plaintiffs' arrests and the initiation of criminal charges against them were clearly without probable cause or other legal justification, and was based on facts alleged by Defendants, which Defendants knew to be false, yet Defendants failed to take any action or make any effort to intervene, halt or protect Plaintiffs from being unlawfully and wrongfully arrested and prosecuted.

179. As a result of Defendants' violations of Plaintiffs' constitutional rights by failing to intervene in other Defendants' clearly unconstitutional use of force and Plaintiffs' unconstitutional arrests and prosecutions, Plaintiffs were deprived of their liberty, suffered bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

FOURTH CAUSE OF ACTION

FALSE ARREST

180. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

181. As a result of Defendants' conduct as described above, Plaintiffs were subjected to illegal, improper, and false arrest by Defendants and taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege, or consent.

182. As a result of the foregoing, Plaintiffs were deprived of their liberty and property and First Amendment rights, suffered bodily injury, pain and suffering, psychological and emotional injury, humiliation, costs and expenses, and were otherwise damaged and injured.

FIFTH CAUSE OF ACTION

EXCESSIVE USE OF FORCE

183. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

184. The level of force employed by Defendants was objectively unreasonable and in violation of Plaintiffs' constitutional rights.

185. As a result of the foregoing, Plaintiffs were subjected to excessive force and sustained physical and emotional injuries.

SIXTH CAUSE OF ACTION

FIRST AMENDMENT

186. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

187. In detaining, assaulting, and arresting Plaintiffs, in prosecuting Plaintiffs, and in implementing, enforcing, encouraging, sanctioning, and/or ratifying policies, practices, and/or customs punishing peaceful protest, Defendants violated Plaintiffs' rights to speak, assemble, associate, and petition the government for redress of grievances peaceably in retaliation for their speaking out on a matter of public concern.

188. As a result of the foregoing, Plaintiffs were deprived of their liberty and property and First Amendment rights, suffered bodily injury, pain and suffering, psychological and emotional injury, humiliation, costs and expenses, and were otherwise damaged and injured, and Defendants chilled and created the risk of chilling conduct protected by the First Amendment.

SEVENTH CAUSE OF ACTION

MALICIOUS ABUSE OF PROCESS

189. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

190. Defendants issued legal process in the form of police records and sworn statements in criminal court complaints against plaintiffs to detain and prosecute Plaintiffs

191. Defendants arrested Plaintiffs in order to obtain a collateral objective outside the legitimate ends of the legal process.

192. Defendants acted with malicious intent to do harm to Plaintiffs without excuse or justification.

193. As a result of the foregoing, Plaintiffs were deprived of their liberty and property and First Amendment rights, suffered bodily injury, pain and suffering, psychological and emotional injury, humiliation, costs and expenses, and were otherwise damaged and injured.

EIGHTH CAUSE OF ACTION

SELECTIVE ENFORCEMENT

194. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

195. Defendants' use of the New York State disorderly conduct statute against Plaintiffs, but not others similarly situated, was invidiously discriminatory, malicious, purposeful, and/or arbitrary and capricious.

196. Defendants' selective enforcement of the New York State disorderly conduct statute against Plaintiffs violated Plaintiffs' constitutional rights under the Fourth, , and Fourteenth Amendments to the United States Constitution.

197. As a result of the foregoing, Plaintiffs were deprived of their liberty and property and First Amendment rights, suffered bodily injury, pain and suffering, psychological and emotional injury, humiliation, costs and expenses, and were otherwise damaged and injured.

NINTH CAUSE OF ACTION

***MONELL CLAIMS AGAINST DEFENDANT CITY
THROUGH 42 U.S.C. § 1983***

198. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

199. All of the acts and omissions by the named and unnamed individual police officer Defendants described above were carried out pursuant to policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the Defendant CITY and its agency, the NYPD.

200. Defendant CITY and the NYPD, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified the individual police Defendants' wrongful acts; and/or failed to prevent or stop those acts; and/or allowed or encouraged those acts to continue.

201. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures and rules of the CITY and the NYPD, all under the supervision of ranking officers of the NYPD.

202. The aforementioned customs, practices, procedures and rules of the CITY and the NYPD includes, but is not limited to:

- a. The policy and practice of unreasonably restricting protected activities in Liberty Plaza between September of 2011 and the incident;
- b. The policy and practice of failing to ensure that constitutionally meaningful and adequate dispersal orders and opportunities to disperse are given prior to effecting arrests in connection with First Amendment assemblies;
- c. The NYPD's use of force and use of force reporting policies and practices;
- d. The policy and practice of treating perceived "groups" of people as a "unit" for "mass arrest" probable cause determination purposes without ensuring that lawfully authorized and constitutionally significant notice, and a meaningful opportunity to disperse, were given and disregarded prior to treating the perceived "group" as a "unit";
- e. The policy and practice of applying the prohibition in the New York State Penal Law ("PL") on violation-level Trespass in circumstances where there is no lawful authority to arrest or detain perceived "groups" of people;
- f. The policy and practice of applying PL § 240.20 (6) (Disorderly Conduct – Failure to Obey Lawful Dispersal Order) in circumstances where neither lawful dispersal orders, nor meaningful opportunities to disperse, were in fact given;
- g. The use of arrests and full-blown arrest processing in lieu of issuing summonses for summons-eligible offenses;
- h. The policy and practice of assigning "arrest teams" of officers who had not witnessed the conduct allegedly giving rise to the need for arrests to "process"

the arrests of multiple arrestees, including by filling out NYPD paperwork and swearing out accusatory instruments containing false information; and

- i. The policy and practice of inserting NYPD Legal Bureau and CJB agents into a special Mass Arrest Processing Plan using a centralized Mass Arrest Processing Center that manufactured false business and court records after the fact designed to give the impression that assigned arresting officers witnessed or knew things they had not, in fact, witnessed or known of.

203. The aforementioned customs, practices, procedures and rules of the CITY and the NYPD were enacted based on Plaintiffs' First Amendment protected activity and not for any legitimate law enforcement purpose.

204. As a result of the foregoing, Plaintiffs were deprived of their liberty and property and First Amendment rights, suffered bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

JURY DEMAND

205. Plaintiffs demand a trial by jury in this action of all issues pursuant to Fed. R. Civ. P. 38(b).

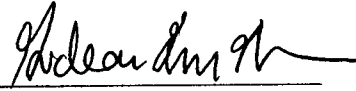
PRAYER FOR RELIEF

WHEREFORE, Plaintiffs pray for the following relief:

- A. Compensatory damages against the defendants jointly and severally; and
- B. Punitive damages against the individual defendants; and
- C. Attorney's fees and costs pursuant to 42 USC §1988; and
- D. Such other and further relief as the Court deems just and proper.

DATED: New York, New York
March 17, 2015

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Gideon Oliver", with a horizontal line underneath.

Gideon Orion Oliver
Attorney for Plaintiffs
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646-263-3495